

April 11 – Cooke vs Cooke Talking Points

Important mentions:

- I took the boys to the Doctor appointments and Flu Shot appointments. I also organised their covid vaccines and Japanese Encephalitis vaccines.
- I exclusively arranged and organised our last trip to Canada, car rental and lodging while there. **I have evidence. I also organized our trip to Brisbane in 2023 to visit the Steve Erwin Zoo. This included lodging, trip to the Museum, flight and car rental. Again, I have evidence.**
- Pharmacist has previously provided me with a statutory declaration stating I have been the parent involved for years. This stat declaration was provided to Drew during the child impact assessment meeting and is acknowledged in the subsequent report.
- Rarely used Our Groceries app. Was only really ever used if Heather wanted to try something new she discovered in the Coles books I'd bring home for her. In terms of anything else, as I was primarily doing the cooking I always had a mental note to refer to what was needed in the fridge or pantry.
- Heather claims she feels unsafe, I don't know how to really refute this other than to point out she hasn't claimed I have ever hit her and endured 9 months of a dead bedroom which further.
- **Sexual harassment and speaking to the children inappropriately regarding sex I refute.**
I also note I previously addressed these issues in my draft affidavit point 69 which I had sent to Jacqueline and Prue on March 22, 2024 (attached in email "**Sex and Work - DRAFT March 6 Consolidated Affidavit...**") in which it was Heather who spoke inappropriately to the children in this regard but it was removed from the final affidavit. **It concerns me that the opposing party has now brought up this matter, despite my best efforts to address it pre-emptively as it was omitted from my final affidavit. Now at a disadvantage it reflects poorly on me to refute at this juncture. I urge you to emphasize to the court the stark contrast in perspectives here and that I did not have the opportunity to present my version of events before reading Heather's affidavit, where this matter is discussed in court.**

When I felt neglected by Heather, my typical response was to withdraw. This behaviour stemmed from previous attempts to discuss my feelings, which were met with inappropriate reactions and wild accusations. These experiences left me feeling embarrassed and ashamed.

Note: there are more inappropriate comments in this regard that Heather has made directly to the children while intoxicated and angry, **but I have chosen not to share as they are wildly inappropriate.** The only "sex talk I have had with the children was where I felt absolutely obligated to do so in an effort to mitigate the damage Heather has caused with her unfiltered banter to the children regarding sex whereby, I have simply explained to the boy's "sex" is like kissing but reserved for the person whom you are married to.

- **Facebook post: On page 46** we see briefly where I am suggesting marriage/couples counselling and I acknowledge Heather having expressed feelings of manipulation. **Just because Heather says she feels manipulated does not mean it is true. Nor does it mean her feelings in this regard are not valid. Hence, I recommended counselling!**
- Multiple letters from Heather stating I am an emotional mess yet Christian asks why there is a profile picture of me crying on the couch whenever he calls me. I have this conversation recorded; Christian unaware. It is as if Heather has been conditioning the children to have this negative view of me despite her own lawyers' comments how distressing this is for the boys.
- Bitcoin Mining are 2021 expenses! The endeavour was endorsed by Heather. I identified we could yield a greater return from using excess solar energy then what would have otherwise been the case had we sent that excess energy back to the grid. I'm certainly not the first to attempt this idea, it is quite common.
- The backup internet and its subsequent satellite (aka cheap ass eBay Telstra antenna) served but one purpose. Obviously, it does what its title would suggest but the Amazon Ring Security System does not work when the internet goes down. Again, Heather endorsed and is fully aware of its purpose; **I have evidence.**
- **Despite all the negative lies about me in her affidavit, she requested to adjust the interim, interim holiday schedule for the children to spend 14 days with me/greater than 50%. I agreed.**
- Heather acknowledges having a space to retreat before leaving the marital home, how unsafe does she feel?

- Perhaps it's possible that Heather's perceived need for "protection" stems from her misunderstanding of my capacity to move forward after her blatant attempts to deceive me and leave me financially destitute by pressuring me into signing the "Game Plan" document. It's unjust that both myself and the children should suffer as a result of her actions. But given the crazy accusations, I think it is best I continue to not know where Heather lives however it concerns me I do not know where the children live and I don't know how to address that.
- She is a liar. Heather lied to Drew during the Child Impact Assessment meeting regarding her drinking.
- Hygiene: I believe the boys frequent staph infections since her departure has more to do to Heather not keeping on top of the boy's nails. Historically, not once, has Heather trimmed the boys' nails pre separation. I have historically done this task. I include a picture of the boys' fingernails on a day they arrived into my care. I also attach messages from our family wizard regarding my comments regarding the boys hygiene, see "OFW_Messages_Report_2024-04-03_20-51-48.pdf"
- I have attended two networking events in the field I am trying to break into, established a presence on LinkedIn and Seek. Met with recruiters. Even applied for jobs. refer to "Sex and Work - DRAFT March 6 Consolidated Affidavit...) where I have discussed this.
- Playdates I have organized since Heather has left:
 - Mackenzie: Nov 19th, Dec 10th, Jan 15th, Jan 17th, Jan 29th, Jan 27th (Joshua's Birthday Party at Revolution), Mar 3rd, Mar 31st - She is a good friend of Joshua.
 - Luke: Jan 14th, Feb 3rd, Feb 15th, Feb 2nd, Feb 3rd good friends of both boys
 - Kaiden: Mar 4th, arranged 1st playdate at the marital home with Rose (Kaiden's mom). Kaiden is a new but good school friend of Christians.

Heather is attacking me on 5 multiple fronts:

- 1) I stayed home and did not work and that she was the primary caregiver for our boys.
 - 2) I had excessive spending habits on myself.
 - 3) I drank excessively and did not take my medication.
 - 4) I verbally abused her, and she moved out of our home because she did not feel safe.
 - 5) My ADHD causes me to be unsuitable as a parent.
 - 6) I choose not to work
1. Heather claims to have been the primary caregiver for our boys, but the reality is vastly different. While Heather was away at work from 7 am to 6/6:30 pm on weekdays and often worked weekends, she spent only a small fraction of the boys' awake time with them during the week. Evidence shows that I, in fact, stayed home to care for our boys with mutual consent.

Spending

\$9,693.51 - Vacations 2023 (Fiji & Brisbane)

\$21,021.16 - Heather Spending 2023

- \$1,998 - 6/12/2022 - The Royal Australasian 610292565444
- \$9,809.7 - 19/05/2023 - Medical Indemnity 61 3 86208888
- \$6,695.17 - 1/02/2023 – 19/11/2023 – Fussy Cow Cleaner (9m once a week)
- Heather hired a cleaner to free up Stephen's time, but the cleaner did a poor job and despite the cleaner's weekly visits, additional cleaning was required, especially due to two young boys in the household. Prior to Heather hiring the cleaner:
 - Sole responsibility for cleaning tasks like vacuuming, dishes, toilets, yard work, etc., rested on Stephen.
 - Heather occasionally cleaned her shower with bleach and sometimes cleaned Stephen's shower as well.
 - Stephen was still involved in tasks like making beds and cycling linen.
 - Stephen still had to perform weekly top-to-bottom cleans and manage multiple toilets, sometimes three times a week.
 - Heather claimed ignorance about using the vacuum and said she wasn't strong enough to operate it, despite receiving a Dyson stick from myself as a gift.
 - Stephen ensured a tidy home for their kids daily through dedicated cleaning efforts.

- Stephen is meticulous about cleanliness and takes pride in maintaining a tidy home. It's unreasonable to think Heather endured living in a mess for 9 years, as during that time, Stephen managed the cleaning with no external help. Despite having ADHD, Stephen remains meticulous about cleanliness.
- **\$2,518.29 - 2023** - Marley Spoon Heather and I only. Heather and I would take turns preparing these meals together.
 - **Heather never cleaned dishes.** This task was beneath Heather. I reckon she attributed it to the equivalent of handling dirty diapers. She was the professional bringing in the big bucks and it was my role to handle the shit. After meals she prepared for us, she would not clean up after herself. Fair. But when I prepared the meals, not once did she offer to assist in the tidy up. Not once.
 - Initially, you contributed equally to Marley Spoon meal preparation, but Heather eventually took over, complaining about my speed.
 - **Heather confirms in her affidavit that I continued to prepare the meals for the children.**

\$16,386.00- Heather Spending Jewellery

- Excluding the engagement and wedding rings. Comparatively I have considerably less spent on self-indulgent gifts.

21,848.01 – Stephen alleged frivolous spending 2023

- **Family expenses covering purchases from eBay, Amazon, and Bunnings, along with birthday and Christmas gifts, general presents, sporting goods, and a home security system. These expenses contribute to our family's well-being.**
- Expenses related to the Media Server and Mining Rig venture (to yield a greater return from mining excess energy as opposed to sending it back to the grid) **date back to expenses having occurred in 2021!** All of which I have evidence to support Heather was aware of. **Heather, at her request has her name is on the invoice of the server that houses the media server and mining equipment.**
- **\$1,572.50 – Stephen birthday present: I purchased a Garmin watch in October**
- **\$2,000 - Heather birthday present: Jewellery**

\$22,427.26 – Groceries (2023)

\$1,902.65 – Fast Food

- Traditionally, the boys enjoyed Grilled takeout after Wednesday swim classes. Heather moved swim to Thursdays on March 22, 2024, but no longer attends so I will be picking up the cost going forward. **Christian isn't pleased stating “it reduces our time together.” Joshua on another occasion comments “were sad after our goodbyes at swim.” Heather however claims the change to perceived conflict between parents at swim. There is no conflict at swim and confirms we do not sit together. The boys always greeted me warmly hugs and kisses and lots of excitement when I attended. Ultimately, I agreed to Heathers request, but I also advised that while I agree to taking the kids to swim on a Thursday, I do not however agree to spending less**

time with them. This remains an unresolved issue and is one in which Christian had taken notice of before I did, despite his ADHD he is very intelligent.

Drinking

2. Accusations of excessive drinking and failure to take medication are unfounded. A hair follicle test for alcohol consumption returned the lowest possible reading, indicating no or minimal alcohol consumption. Text messages from Heather requesting alcohol purchases as late as October 2023 contradict her claim of abstaining from alcohol since July 2023. Additionally, medical tests confirm my consistent use of prescribed medication.

3. Claims of verbal abuse leading to Heather's departure from our home due to safety concerns are entirely fabricated. There is no history of threats or actions that would cause Heather to feel unsafe.
4. On the contrary, I have endured verbal abuse and worse, a matter fully disclosed to my psychiatrist since September 2023. I would be greatly surprised if this information had not been included in the subpoena issued by Dr. Moisey from ATUNE.

My ADHD causes me to be unsuitable as a parent

Delaney's letter, dated December 1st, rebuffs my claim as the primary caregiver. However, subsequent affidavits from Heather affirm that I predominantly handled cooking duties for the children. Throughout 2023, the children engaged in various after-school programs and Lab Learning sessions. **I diligently ensured the boys attended these appointments punctually, backed by Google Timeline data.** Moreover, we provide evidence that Stephen facilitated Christian's appointments with Dr. Elder, a paediatrician, and Kane Becker, a child psychologist, countering claims of my alleged need for constant direction or executive function deficit due to ADHD. Heather's argument that my failure to secure an ADHD diagnosis reflects a lack of executive function oversight is flawed. **It disregards the widespread diagnosis of ADHD and the challenges associated with accessing appropriate medical care within global healthcare systems. Furthermore, the notion that Heather's connections in the medical field expedited Christian or Stephen's access to care undermines her critique.**

Her argument is further refuted by the fact that Stephen only received his ADHD diagnosis in September, with Heather's assistance, which does not diminish the nine years of successful parenting prior to this diagnosis.

Google Timeline

Google Timeline data, available to all Google users, is safeguarded behind Google's two-factor authentication. It's important for the court to understand that Stephen is unable to monitor Google Timeline data for anyone other than himself as he does not possess the skills to circumvent Google security measures few if any do. Google Timeline data is generated when a user grants consent to Google or Google Maps to utilize their location for navigation, which is necessary for Google Maps to function properly. Essentially, Google Timeline data is accessible to anyone using Google Maps. While users have the option to opt out, most choose not to as they are either unaware of option to do so or aware but choose to accept the risks attached out of convenience accorded such as being able to use a tool like google maps.

B. Financial Considerations

- 1) \$391,090.76 withdrawn from our joint bank account by Heather prior to her departure requires clarification. Initially claimed for asset distribution and advised I get my own lawyer for this reason. On Jan 29 2024 we are advised funds are not protected by way of trust account. further details on the allocation of these funds are needed.
- 2) Discovery of a \$235,000 loan post-Heather's departure prompts inquiries into its purpose and associated investment. Confirmation from the bank regarding my involvement and details on the investment securing the loan are essential for financial transparency. Investigation into the Brisbane investment property, which generated approximately \$500,000 in rental income over our marriage, is necessary. Clarification on the allocation of these funds and their inclusion in the asset split process is vital to ensure equitable distribution.

These points underscore the need for comprehensive examination and resolution of both Heather's claims and financial matters within the context of our legal proceedings.